

litigant is not inadvertently misled, either by the represented party or by the court. ... [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson. This is the essence of equal and fair treatment, and it is not only important to serve the ends of justice, but to maintain public confidence in the judicial system." Ibid.

Here, there is no evidence that Defendant was misled by the court or Plaintiff. The motion and supporting papers were properly served, and Defendant has had ample opportunity to respond.

III. Failure to Oppose

California Rules of Court, rule 8.54(c) states that "[a] failure to oppose a motion may be deemed a consent to the granting of the motion." *Cravens v. State Bd. of Equalization* (1997) 52 Cal.App.4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 (where a party fails to file timely opposition to a motion, it is "well within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified"); *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 (failure to address or oppose issue in motion constitutes waiver of that issue); *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784-785 (failure to support a point with reasoned argument and citations to relevant authority constitutes waiver).

Defendant's failure to timely oppose this motion is deemed consent to its granting.

Ruling

Having considered Plaintiff Hau Wing "Bonnie" Sezto's Motion to Deem Matters Specified in Requests for Admissions Admitted and for Monetary Sanctions, the supporting declarations and exhibits, and the applicable law, the Court hereby finds, concludes, and orders as follows:

1. Plaintiff's Motion is **granted**.
2. Plaintiff's Requests for Admissions of Fact and Genuineness of Documents to Defendant David Martin Justice, Set One, Request Nos. 1-35, are **deemed admitted** .
3. The documents attached to Exhibit 1 of the Requests for Admissions are **deemed genuine**.
4. Monetary sanctions in the amount of \$3,500 are awarded against Defendant David Martin Justice. Defendant shall pay sanctions no later than thirty (30) days from the date of entry of this order.
5. Plaintiff shall prepare and e-file a proposed order conforming to this ruling no later than five (5) days from the date of this order.

23. 9:01 AM CASE NUMBER: MSC21-01215

CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH

***HEARING ON MOTION FOR DISCOVERY RELIEF FROM DEFENDANT'S MOTION TO DEEM REQUESTS FOR ADMISSIONS ADMITTED**

FILED BY: WESTBROOK, LYNETTA

TENTATIVE RULING:

Summary

Before the Court is Plaintiff Lynetta Westbrook's ("Plaintiff") Motion for Relief from Orders Deeming Requests for Admission Admitted and Awarding Sanctions. The motion is **denied**.

Background

On September 8, 2025, Defendant San Pablo Healthcare & Wellness Center ("Defendant") filed three motions to compel discovery: (1) Motion to Deem Facts Admitted as to Plaintiff Individually; (2) Motion to Deem Facts Admitted as to Plaintiff as Successor in Interest; and (3) Motion to Compel Production of Documents and Things (Set Two).

The motions stemmed from Plaintiff's failure to provide verified, complete responses to Requests for Admission and Requests for Production served on April 28, 2025, despite extensions granted to June 27, 2025. On February 25, 2026, the Court granted all three motions, deeming the Requests for Admission admitted and awarding sanctions totaling \$5,068.85. Plaintiff did not file formal oppositions, nor did she notify the Court of her intent to contest the tentative ruling prior to the hearing.

Plaintiff now moves for relief under Code of Civil Procedure section 473(b), contending that her failure to oppose the motions resulted from "excusable neglect" attributable to her counsel's staffing crisis. Counsel attests that an associate attorney was hospitalized in mid-December 2025 and two paralegals were on leave to study for the bar examination, disrupting the firm's calendaring system and creating a discovery backlog.

Plaintiff emphasizes that she served verified responses to the Requests for Admission on February 9, 2026, and responses to the Requests for Production on February 13, 2026 (with verifications following on February 19, 2026), and filed a declaration on February 9, 2026, apprising the Court that responses had been provided. Plaintiff argues that the Court overlooked this submission due to titling deficiencies and that Defendant will suffer no prejudice because substantive responses were served prior to the hearing. Alternatively, Plaintiff seeks discretionary relief under Code of Civil Procedure section 2033.300, arguing the deemed admissions resulted from mistake, inadvertence, or excusable neglect, and that Defendant will not be substantially prejudiced by permitting withdrawal of the deemed admissions.

Defendant opposes the motion, arguing that Plaintiff invoked the wrong statutory mechanism and procedurally defaulted by failing to formally oppose the discovery motions or contest the tentative ruling prior to the hearing.

Analysis

A. Applicable Legal Standard

Where the Discovery Act provides a specific remedy for the relief sought, Code of Civil Procedure section 473(b) is inapplicable. *Zellerino v. Brown* (1991) 235 Cal.App.3d 1097, 1107; *Scottsdale Ins. Co. v. Superior Court* (1997) 59 Cal.App.4th 263, 274. Relief from deemed admissions is governed by Code of Civil Procedure section 2033.300, which permits withdrawal or amendment of an admission only upon a showing that (a) the admission resulted from mistake, inadvertence, or excusable neglect, and (b) the party who obtained the admission will not be substantially prejudiced. *New Albertsons, Inc. v.*

Superior Court (2008) 168 Cal.App.4th 1403, 1418. Relief under section 2033.300 is discretionary, not mandatory.

B. Plaintiff Has Failed to Establish Excusable Neglect

As a general rule, attorney neglect is imputed to the client, who bears the burden of demonstrating that such neglect was excusable. *Henderson v. Pacific Gas & Elec. Co.* (2010) 187 Cal.App.4th 215, 230-232. The test for excusable neglect is whether "a reasonably prudent person under the same or similar circumstances might have made the same error." *Bettencourt v. Los Rios Community College Dist.* (1986) 42 Cal.3d 270, 276. Where an attorney is aware of a deadline yet fails to file a response or opposition, such conduct is not excusable. *Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1128-1129. Numerous calendaring mistakes due to disorganization of counsel, chronic short staffing, and habitual failures do not constitute excusable neglect. *Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1412; *Ambrose v. Michelin North America, Inc.* (2005) 134 Cal.App.4th 1348, 1355-1356. An attorney cannot blame secretaries or clerks for missed deadlines or improper filings. An attorney must supervise staff to ensure compliance with court obligations. *Vaughn v. State Bar* (1972) 6 Cal.3d 847, 857-858 (The Court found that the "record amply establishes that petitioner (attorney) was grossly negligent in failing to supervise adequately his staff and its work product, particularly in respect to its handling of court documents.")

The record reflects a pattern of calendaring deficiencies and discovery failures, including the provision of unverified and incomplete responses, failure to cure defects following meet and confer efforts, and failure to oppose multiple motions to compel. A reasonably prudent attorney would not miss numerous deadlines over the span of a year, including those related to several sets of discovery, multiple motions to compel, and post-order sanctions compliance. The neglect at issue was systemic and chronic, not a single isolated error. The Court finds that Plaintiff provided unverified, incomplete responses on June 27, 2025; failed to cure defects following Defendant's meet and confer letter dated July 18, 2025; and failed to remedy deficiencies until after Defendant filed its motions on September 8, 2025.

Plaintiff cannot attribute these numerous errors to counsel's inexperience. Plaintiff's lead counsel is very experienced, having been admitted to practice in California for over twenty years. She cannot attribute a repeated pattern of noncompliance with the Discovery Act to associate attorneys or paralegals. An attorney's failure to supervise a paralegal does not constitute "excusable" neglect. Under Cal. Code of Civ. Proc. § 473, an attorney is responsible for their staff's work product. *Hu v. Fang* (2002) 104 Cal.App.4th 61, 64-65. The Court also notes that counsel's principal office is in Dallas, Texas, suggesting that counsel administers this case from a distance of 1,700 miles and across two time zones. These circumstances do not constitute excusable neglect; they demonstrate ineffective case management.

C. Defendant Would Be Substantially Prejudiced by Granting Relief

The record also shows that Plaintiff has demonstrated a refusal to comply with discovery obligations and this Court's orders, necessitating additional enforcement proceedings. Permitting withdrawal of the deemed admissions would prejudice Defendant by requiring further protracted discovery disputes and law and motion practice that could have been avoided had Plaintiff exercised due diligence.

Ruling

Having considered Plaintiff Lynetta Westbrook's Motion for Relief from Deemed Requests for Admission and Sanctions, the Opposition filed by Defendant San Pablo Healthcare & Wellness Center, LLC, the supporting declarations and exhibits, the arguments of counsel, and the applicable law, the Court hereby finds good cause to make the following orders:

1. Plaintiff Lynetta Westbrook's Motion for Relief from Deemed Requests for Admission and Sanctions is **denied** .
2. The February 25, 2026 orders deeming Defendant's Requests for Admission admitted and awarding sanctions in the total amount of \$5,068.85 shall remain in full force and effect. Plaintiff is ordered to pay sanctions no later than ten (10) days from the date of entry of this order. The Court reserves jurisdiction to schedule a hearing on Defendant's Motion for Contempt for Failure to Pay Discovery Sanctions filed on March 5, 2026.
3. Plaintiff shall pay Defendant's reasonable attorneys' fees and costs incurred in opposing this motion, in an amount to be determined by the Court upon proper application by Defendant.
4. Defendant's counsel shall prepare and e-file a proposed order conforming to this ruling no later than five (5) days from the date of this order, attaching a copy of this ruling.

Law & Motion

Add On

24. 9:00 AM CASE NUMBER: C23-03161
CASE NAME: ALISCHA WILSON VS. INTEX RECREATION CORP.,
PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT
FILED BY: WILSON, ALISCHA

TENTATIVE RULING:

Summary

Plaintiff, Alischa Wilson, ("Plaintiff") on behalf of herself and all others similarly situated and aggrieved seek Preliminary Approval of a Class Action Settlement with Defendants Intex Recreation Corp., Intex Marketing Ltd., and Intex Industries (Fujian) Company, Ltd. ("Defendants"). The case involves claims made with regard to the Intex-brand Intex Kool Splash Water Slide.